

By engaging You Mimic AI, accepting a proposal, quotation, statement of work, invoice, subscription plan, or participating in an avatar capture session, the Client agrees to these Terms of Business.

Nothing in these Terms excludes, restricts or modifies any rights, guarantees or remedies the Client may have under the Australian Consumer Law or any other applicable law that cannot be excluded, restricted or modified.

1. Services

You Mimic AI provides AI avatar production and related services, which may include:

- avatar capture sessions
- creation and setup of AI avatars
- platform onboarding and administration
- video generation and content creation
- interactive avatar experiences
- editing, localisation, translation, and related production services
- hosting, storage, subscription-based access & related services.

The Services will be provided in accordance with the relevant Engagement document, such as a proposal, quotation, statement of work, invoice or subscription plan. The Client is responsible for reviewing the scope, inclusions, exclusions, assumptions, usage limits and fees before accepting the Services.

You Mimic AI is not required to provide any service, feature, output, revision, integration or deliverable that is not included in the agreed scope. Additional work, additional captures, urgent requests, out of scope changes or additional revisions may incur further costs.

2. Avatar Ownership

At You Mimic AI, we believe the individual should control their own avatar, likeness, voice, and digital presence. To provide the service, the Client grants You Mimic AI permission to capture, host, store, process, and use approved AI tools to create and manage content featuring that avatar.

This permission is limited to what You Mimic AI reasonably needs to provide, operate, support, improve and secure the agreed Services. Any public use or sharing of avatar-generated content must be authorised by the Client and aligned with the agreed purpose of the engagement.

Client owns their likeness, and, subject to payment of all applicable fees and any third-party platform restrictions, the final content created for the Client using their avatar. You Mimic AI retains ownership of its pre-existing tools, methods, templates, workflows, systems, know how, processes and platform materials.

Avatar performance is limited by technology, capture conditions, prompts, scripts, source materials, third party platforms and performance on the day of capture. Additional captures may incur further costs.

The Client confirms they have full authority and consent from the individual whose likeness, voice, image, name, identity or performance is being captured, processed, stored or used.

3. Consent, Security & Ethical Use

You Mimic AI operates on a consent-based, transparent, and human supervised model. Avatars are only created and used with clear approval, and the Client remains responsible for how the avatar and any related content are used. The Client must ensure that all use is lawful, authorised, consent-based and consistent with the agreed purpose of the engagement.

We take privacy, data protection, and brand safety seriously, with secure storage, encryption where applicable, and strict controls around access and usage.

You Mimic AI does not permit the Services or any avatar-generated content to be used for any deceptive, misleading, harmful, unlawful, unauthorised, infringing or otherwise improper purpose.

Without limiting any other rights, You Mimic AI may terminate access where it reasonably considers that the Client's use may breach these Terms, or applicable law, or may expose You Mimic AI or any person to material risk.

4. Storage & Third-Party Providers

We take data security seriously. Your data is encrypted in transit and at rest wherever applicable. We may store different data types separately, including voice and visual assets, where reasonably practicable to help mitigate risk and reduce exposure.

We do not train our models on your data, nor do we use your avatar, voice, or content to train systems for other clients.

In delivering the service, we may use carefully selected third-party providers for hosting, processing, storage, AI generation and payment

Those providers may be subject to their own platform terms, policies, technical limits, content restrictions and availability requirements.

You Mimic AI will take reasonable steps to work with providers whose standards are appropriate for the Services. A list of material third party providers may be provided on request, subject to commercial confidentiality, security and operational limits.

Where we become aware of any material conflict between a third-party provider's terms and our agreement with you, we will advise you and, where required, take reasonable steps to address the issue, including by updating our terms or service approach where reasonably required.

5. Third-Party Platforms and Services

To provide the service, You Mimic AI may use third-party platforms, software providers, hosting services, and other infrastructure.

Subject to any rights the Client has under applicable law, You Mimic AI does not accept responsibility for outages, failures, delays, policy changes, security incidents, or other issues arising from those third-party services where such matters are outside our reasonable control, except to the extent caused by our own negligence, breach of these Terms or breach of law.

Where a third-party issue materially affects the Services, You Mimic AI will take reasonable steps to manage the impact and notify the Client where appropriate.

6. Risk Mitigation & Legal

You Mimic AI implements security and risk mitigation measures, including encryption, restricted access, and where reasonably practicable, separate storage of voice and visual assets. Despite this, no digital system is entirely risk-free.

These Terms of Business are governed by the laws of Tasmania, Australia. The parties must first attempt to resolve any dispute in good faith. If the dispute cannot be resolved, either party may seek legal advice or commence proceedings, subject to the courts of Tasmania, Australia. This does not limit any mandatory legal right the Client may have to bring the claim in another court, tribunal or jurisdiction.

Complaints may be sent to sales@youmimic.com. You Mimic AI will review complaints and respond within a reasonable time.

7. Billing Terms and Contract Commitments

All recurring fees are billed monthly via third-party payment providers, including direct debit or credit card. The Client is responsible for ensuring valid payment details are maintained at all times.

In the event of a failed or overdue payment, there is a 7 day grace period to resolve unpaid fees after notice is given. Without limiting any other right, failure to resolve unpaid fees may result in collection of unpaid amounts, suspension of Services, withholding of deliverables, deactivation of avatars, or termination of the account.

Any variation, downgrade, pause or cancellation request must be made in writing and will require 30 business days' notice, unless otherwise agreed or required by law.

Where services are provided under a fixed-term agreement of 12, 24, or 36 months, the Client remains liable for the full value of that contract term, subject to any rights the Client has under applicable law. Early cancellation does not relieve the Client of their obligation, and any unpaid balance for the remainder of the term will be payable in full, except to the extent required by law.

Deactivations and re activation fees of avatars and paused accounts may incur additional costs, where disclosed or reasonably notified.

Payments will be in the currency as noted, otherwise they will default to Australian Dollars, and all payments will be subject to taxes where relevant.

In the event of an increase in plans, costs or other ongoing subscription costs, You Mimic AI may pass on those increases to the Client, provided the increase is reasonably connected to the Services and reasonable notice is given where practicable.

Refunds are assessed in accordance with these Terms and applicable law. Nothing in these Terms limits any refund, repair, resupply, cancellation, compensation or other remedy the Client may have under the Australian Consumer Law or any other mandatory law.

8. Customer Support

Our team will provide and prioritise support for the services where applicable. Support may require input from third party providers, and resolution times may be affected by platform availability, technical complexity and other matters outside You Mimic AI's reasonable control.

Support does not include out of scope production work, custom development, legal or compliance advice, unrelated third-party platform support, additional revisions or issues caused by Client misuse, Client systems, Client materials or unauthorised changes, unless expressly agreed in writing.

In the event of unprecedented circumstances, a Force Majeure may come into effect. You Mimic AI is not liable for delay or failure to perform affected obligations for the period those circumstances continue. You Mimic AI will take reasonable steps to reduce the impact and resume performance as soon as reasonably practicable.

9. Client Responsibilities

Client agrees to responsible usage with their avatar, in line with laws and regulations of the country of Australia and any other jurisdiction that applies to the Client's use of the Services.

In some instances, state, territory, local or overseas jurisdictions may have restrictions, and it is the Client's responsibility to ensure compliance with those laws and restrictions.

You Mimic AI as service provider holds no accountability for how you use your avatar and content, and not liable should you found to be in breach of these laws and regulations.

In the event of a breach of such usage, and without limiting any other rights, You Mimic AI may suspend or terminate the account while the matter is reviewed or permanently where appropriate.

10. Limitation of Liability

To the maximum extent permitted by law, You Mimic AI's liability in connection with the services, deliverables, or these Terms of Business is limited to the amount paid by the Client for the specific services giving rise to the claim. You Mimic AI will not be liable for any indirect, incidental, special, consequential, or economic loss, including loss of profit, loss of revenue, loss of business opportunity, loss of goodwill, loss of data, reputational harm, or loss arising from delays, outages, or failures of third-party providers, except to the extent caused by our own negligence, breach of these terms, or where liability cannot be excluded by law.

Nothing in these Terms excludes, restricts or modifies any consumer guarantee, statutory right or liability that cannot be excluded, restricted or modified under the Australian Consumer Law or any other applicable law.

The Client indemnifies You Mimic AI against loss, claims, costs, expenses or liability arising from the Client's breach of these Terms, unlawful use of the Services, failure to obtain required consent, infringement of third party rights, or misuse of an avatar or content, except to the extent caused by You Mimic AI's negligence, breach of these Terms or breach of law.

11. Good Faith and Non-Disparagement

The parties agree to act in good faith and deal with each other professionally and respectfully throughout the engagement. If the engagement is terminated for any reason, neither party will make, publish, or communicate any false, misleading, defamatory, or unlawful statement about the other party, its personnel, services, or business reputation, including on social media, in public forums, or to clients, suppliers, or other industry contacts.

This clause does not prevent either party from making truthful or legally protected statements, seeking legal advice, raising a regulator complaint, or doing anything permitted or required by law.

12. Confidentiality

Both parties agree to keep confidential all non-public information shared in connection with the engagement, including business information, scripts, data, internal materials, commercial terms, avatar assets, technical information and any other sensitive or proprietary content.

Neither party may disclose or use such information for any purpose outside the agreed services, except where required by law or with prior written consent from the other party.

Confidentiality obligations do not apply to information that is public through no breach of these Terms, or that a party can show it lawfully knew, developed or received without confidentiality restrictions.